



File No.: EXP202105347 (RR/00696/2022)

RESOLUTION OF THE RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by the entity UNIQUEDESIGN & DECOR, S.L., with CIF: B87754438, holder of the website <https://www.uniquedesigndecor.com/> (hereinafter the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection, dated 28/09/22, in the sanctioning procedure PS/00173/2022 and based on the following:

FACTS

FIRST: On 28/09/22, a resolution was issued by the Director of the Spanish Agency for Data Protection in the sanctioning procedure PS/00173/2022, by virtue of which a fine of 5,000 euros (five thousand euros) was imposed on the entity being claimed for the infringement of Article 13 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (hereinafter GDPR), concerning the lack of information provided to the data subjects at the time of obtaining their personal data through its website, classified as very serious under Article 72.1.h) of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD).

This resolution, which was notified to the appellant on 06/11/22, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of the LOPDGDD, and supplementarily in the LPACAP, regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00173/2022, the following was recorded:

First: In the checks carried out by this Agency on the website <https://www.uniquedesigndecor.com>, both on 08/06/22 and on 14/07/22 after the person responsible for the website indicated to this Agency that the defects had been corrected, it was still verified that if an attempt is made to access the "Privacy Policy" of the website by clicking on the option, the website does not display any document containing information about the privacy policy. Only the contact form is displayed. There is no other link on the page to a possible "Privacy Policy."

Second: After the notification of the proposed resolution and having received the written allegations from the entity being claimed indicating the correction of the deficiencies in the "Privacy Policy" of the website, access was made to the same, verifying the following irregularities: There is no identification of the person responsible for the website; There is no information about the consent provided by the users of the website; There is no information about the legitimacy of the processing of personal data; There is no information about the possible recipients with whom the data will be shared; There is no information about the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

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2/6

Retention period of personal data; There is no information regarding the possibility of filing a complaint with the AEPD.

THIRD: On 06/11/22, this Agency received a written appeal for reconsideration in which the following is stated:

1.- That on 20/10/2021, a document was submitted to this Agency by a complainant stating that a user nicknamed Rosa, allegedly the representative—an unproven fact—had published on 22/10/2021 a publicly accessible message with the name and surname of the Defendant. This document was submitted prior to the occurrence of the event; it was submitted on the 20th, and according to the complainant, the events took place on the 22nd, which already demonstrates the bad intentions of the complainant. Nevertheless, as demonstrated in the previous allegations to this appeal for reconsideration, the issue was immediately rectified, a fact that could be verified by the Spanish Agency for Data Protection.

2.- This complainant stated that additionally, the company Uniquedesign & Decor S.L did not comply with the corresponding privacy policy according to the obligations set forth in Article 13 of the GDPR. In subsequent allegations, it was communicated that this was due to my ignorance for having contracted a website service specifically wix.com, for which the company pays an annual subscription, thinking that it was responsible for updating all that data. Moreover, having an external company that took care of all data protection matters, everything would be up to date. Upon receiving the sanctioning procedure referring to cookies, I took action and spoke with that company, which informed me that it was a matter for wix.com. I proceeded to establish the cookies by researching online how to do it. In response to these allegations, I was told that the privacy policy was missing. Once again, I had to take action, and as I saw that this external company was ineffective, I hired another one, attaching all the invoices for the costs I incurred trying to resolve this issue. Again, I had to investigate online to see how to establish a data protection policy, and I did so. In response to this new allegation, I received the following irregularities: There is no identification of the person responsible for the website; There is no information regarding the consent given by the users of the website; There is no information regarding the legitimacy of the processing of personal data; There is no information regarding the possible recipients with whom the data will be shared; There is no information regarding the retention period of personal data; There is no information regarding the possibility of filing a complaint with the AEPD.

1.- I believe it has been verified that this was not an intentional act, as at the time of the complaint, the company already had a firm responsible for ensuring compliance with the LGPD.

2.- Efforts have been made in all allegations to resolve these issues.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

3.- Therefore, this is not a case of ignorance of the law, as the company, according to the law, contracted not one but two external companies to carry out everything related to Data Protection (invoice attached in the allegation).

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

Regarding the statements made in the appeal, which basically reiterate those already made in the written allegations submitted during the sanctioning procedure PS/00173/2022, it should be noted that these were already analyzed and dismissed in the contested resolution, the grounds of which remain fully valid and are transcribed below:

First: On 14/07/22, this Agency accessed the website, <https://www.uniquedesigndecor.com>, confirming that there was no document containing information about the privacy policy, even though it was verified that personal data of users could be obtained through the contact form.

Second: On 03/08/22, once the sanctioning procedure PS/00173/2022 was initiated for the facts indicated in the previous point, the now appellant entity, UNIQUEDESIGN & DECOR, S.L., stated to this Agency the following:

“As a result of the alarming requests made by the AEPD, we have proceeded to hire a professional service in data protection as it is our intention to review and correct any possible incident not detected by the former Data Protection company. The website should have been supervised and updated by the company that was hired at the time for data protection aspects, and apparently, they have not given it the appropriate follow-up. In light of the complaint, we have proceeded to hire a professional firm in this

matter, through whose advice we are reviewing and correcting any possible incident. Soon we will be in a position to inform about the new measures adopted to comply with the General Data Protection Regulation on the website in particular and in the company in general.”

Third: Well, on 26/09/22, one month and 23 days after the appellant entity expressed its commitment to resolve the irregularities detected on its website, this Agency accessed the “Privacy Policy”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/6

from the website, <https://www.uniquedesigndecor.com>, having verified that there was no identification of the person responsible for the website; there was no information about the consent provided by the users of the website; there was no information about the legitimacy of the processing of personal data; there was no information about the possible recipients with whom the data would be shared; there was no information about the retention period of personal data; and there was no information about the possibility of filing a complaint with the AEPD.

Fourth: As justification for the above, the appealing entity, in its appeal for reconsideration, states that: “it has been verified that this was not an intentional act since at the time of the claim the company already had a firm responsible for ensuring compliance with the LGPD; that it has attempted in all allegations to resolve these issues and that it is therefore not a lack of knowledge of the law since the company, according to the contract, hired not one but two external firms to handle everything related to Data Protection.”

Article 4 of the GDPR, under the heading "Definitions," provides the following:

“2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction.”

Article 12.1 of the GDPR establishes the obligation of the data controller to take appropriate measures to “provide the data subject with all information referred to in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 relating to the processing, in a concise, transparent, intelligible and easily accessible form, using clear and plain language, in particular any information addressed to a child.”

When personal data is collected directly from the data subject, the information must be provided at the moment the data collection takes place. Article 13 of the GDPR details this information in the following terms:

“1. When personal data relating to a data subject is obtained from the data subject, the data controller, at the time of obtaining this data, shall provide the data subject with all the information indicated below: a) the identity and contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing; d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party; e) the recipients or categories of recipients of the personal data, where applicable; f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the guarantees...”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/6

adequate or appropriate guarantees and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in section 1, the data controller shall provide the data subject, at the time when the personal data is obtained, with the following information necessary to ensure fair and transparent data processing: a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period; b) the existence of the right to request from the data controller access to personal data concerning the data subject, and its rectification or erasure, or the restriction of its processing, or to object to the processing, as well as the right to data portability; c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal; d) the right to lodge a complaint with a supervisory authority; e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data; f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, information on that other purpose and any information.

In accordance with these definitions, the collection of personal data that the entity UNIQUEDESIGN & DECOR, S.L., has been carrying out, at a minimum, as stated in the documentation of file PS/00173/2022, since 14/07/22 through the form available on its website

<https://www.uniquedesigndecor.com/> constitutes data processing, for which said entity, as the data controller, must comply with the principle of transparency established in Article 5.1 of the GDPR, according to which personal data shall be “processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency)”; and developed in Chapter III, Section 1 of the same Regulation (Articles 12 and following).

This situation did not occur since, in the verification carried out on 14/07/22 by this Agency regarding the “Privacy Policy” of the website in question, it was found that there was no information on it concerning the provisions of Article 13 of the GDPR, and later, although once the sanctioning procedure was initiated, the entity itself expressed its commitment to rectify the detected irregularities, it was verified by this Agency on 26/09/22 that the “Privacy Policy” of the website in question still had significant deficiencies in its “Privacy Policy” concerning the provisions of Article 13 of the GDPR.

C/ Jorge Juan, 6

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28001 – Madrid

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6/6

Therefore, it was established that, at least, from 14/07/22 to 26/09/22 (two months and twelve days), the website in question exhibited irregularities in the “Privacy Policy” in relation to the provisions set forth in Article 13 of the GDPR.

In light of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the entity UNIQUEDESIGN & DECOR, S.L., with CIF: B87754438, owner of the website <https://www.uniquedesigndecor.com/> against the resolution of this Spanish Agency for Data Protection issued on 28/09/22 in the file PS/00173/2022.

SECOND: TO NOTIFY this resolution to UNIQUEDESIGN & DECOR, S.L.

In accordance with the provisions of Article 50 of the LOPDGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional

provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director

of

the

Spanish

Agency

for

Data

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